

Court No. - 21

Case :- WRIT - C No. - 21161 of 2024

Petitioner :- Sabir

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sunil Kumar Tiwari, Vijay Kumar Mishra

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. None is present for the petitioner even in the second call.
2. Learned counsel appearing for Power Corporation is present.
3. List as fresh on 22.7.2024.
4. In the meantime, Counsel for the Power Corporation may seek instructions.

Order Date :- 4.7.2024

Rishabh

[Manish Kumar Nigam, J.] [Manoj Kumar Gupta, J.]

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1. Learned counsel for the respondent - Electricity Department has placed before us the instructions received by him, according to which, recovery is being made from the petitioner on the basis of assessment order dated 14.10.2018 passed under Section 126 of Electricity Act read with Clause 6.8 of the Electricity Supply Code, 2006.

2. Counsel for the petitioner prays for withdrawal of the writ petition with liberty to assail the said order.

3. Accordingly, the petition is **disposed of** as withdrawn with liberty in terms of the prayer made.

Order Date :- 22.7.2024

Rishabh

[Manish Kumar Nigam, J.] [Manoj Kumar Gupta, J.]